

Court No. - 2

Case :- WRIT - C No. - 4525 of 2010

Petitioner :- Alok Mohile

Respondent :- State Of U.P. Thru Sec. Mini. Of Power Lko. And Others

Petitioner Counsel :- Manish Tandon

Respondent Counsel :- C.S.C., Harihar

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

Smt. Mridula Tripathi, learned counsel for the respondent seeks three days time to obtain instructions.

Put up on 10.02.2010, as fresh.

Order Date :- 5.2.2010

Jaideep/-

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Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Heard learned counsel for the petitioner and Ms. Mridul Tripathi appearing for respondents No.2 to 4.

By this writ petition, the petitioner has prayed for a writ of mandamus directing respondents No.3 and 4 to install electricity connection in the shop situate in House No.111/407, Ashok Nagar, Kanpur Nagar.

The petitioner, who is a tenant in the shop, has made an application for electricity connection on 27th June, 2009. On 11th July, 2009 an order was written by the Assistant Engineer informing the petitioner that objection has been filed by the landlady, hence connection cannot be granted.

Learned counsel for the petitioner contends that dispute of tenancy is pending with the landlady and even if no objection is not given by the landlady, the petitioner can be granted connection in accordance with Paragraph 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005. Learned counsel for the petitioner submits that petitioner is ready to complete all necessary formalities but the application is not being processed.

Ms. Mridul Tripathi has submitted that petitioner has not submitted indemnity bond as required under Paragraph 4.2 of the U.P. Electricity Code, 2005 and in case petitioner submits indemnity bond and completes all other formalities, the application of the petitioner shall be processed.

In view of the stand so taken by the learned counsel for the parties, no useful purpose will be served in keeping the writ petition pending. The writ petition is disposed of directing the respondents to consider the case of the petitioner for grant of electricity connection subject to fulfillment of all necessary requirements by the petitioner.

Order Date :- 10.2.2010

Rakesh